



CHAPTER xiii.

An Act to increase the maximum rates dues tolls and charges leviable by the Dublin Port and Docks Board. A.D. 1919.
[29th May 1919.]

WHEREAS prior to the passing of the Act first referred to in the next following recital the port and harbour of Dublin was under the control and management of a body known as the corporation for preserving and improving the port of Dublin which was incorporated by an Act of the Parliament of Ireland passed in the year one thousand seven hundred and eighty-six and administered the provisions of that Act and subsequent Acts:

And whereas by the Dublin Port Act 1867 the name of the said corporation was changed to its present name of the Dublin Port and Docks Board (hereinafter referred to as "the Board") and by the Dublin Port and Docks Act 1869 the former Acts relating to the Board were consolidated and amended: 30 & 31 Vict. c. lxxxi. 32 & 33 Vict. c. c.

And whereas by various subsequent Acts further powers were conferred upon the Board and the powers of the Board under the Acts relating to them include powers of levying and charging rates dues tolls and charges in respect of vessels entering the said port or entering using and frequenting the Custom House docks of the Board and in respect of goods shipped transhipped or unshipped within certain limits defined by the Dublin Port and Docks Act 1902 and therein referred to as "the rates limits" or brought into or landed or deposited within or delivered or shipped from the said Custom House docks or deposited within or delivered from the Custom House dock premises and warehoused stored or yarded within the same and in respect of various other matters and things and of 2 Edw. 7. c. cxxliv.

A.D. 1919. — various services rendered by the Board in connexion with their harbour and dock undertaking :

And whereas the rates dues tolls and charges which the Board may so levy and charge or some of them are limited by the said Acts or some or one of them to certain specified maxima and owing to the great increase which has recently taken place in the cost of carrying on the said undertaking the rates dues tolls and charges so limited are insufficient to enable the said undertaking to be carried on efficiently :

And whereas it is anticipated that such increased cost as aforesaid will to a large extent continue permanently and it is expedient that the said maximum rates dues tolls and charges so limited should be increased as by this Act provided :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the Dublin Port and Docks Act 1919.

Interpretation.

2. In this Act—

The expression “the Board” means the Dublin Port and Docks Board ;

The expression “the existing Acts” means the Act of the Parliament of Ireland 26 George III. cap. 19 and all subsequent Acts of or relating to the Board (so far as the provisions thereof respectively remain unrepealed) and the Acts incorporated with such Acts respectively ;

The expression “the maximum rates” means the rates dues tolls and charges leviable or chargeable by the Board as limited by the existing Acts or some or one of them.

Increase of maximum rates.

3. As from the passing of this Act each of the maximum rates is hereby increased by an amount equal to thirty-three and one-third per centum thereof and the existing Acts shall be read and have effect accordingly.

Provision in case of future purchase.

4. If the undertaking of the Board is acquired otherwise than by agreement by any public body or trustees the Board

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shall not be entitled to make any claim in respect of the powers conferred upon them by the section of this Act of which the marginal note is "Increase of maximum rates" Provided that nothing in this section shall prejudice the rights of any person entitled to any mortgage of or charge secured upon the undertaking or revenue of the Board or any part thereof. A.D. 1919.

5. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Board. Costs of Act.

Printed by EYRE and SPOTTISWOODE, LTD.,

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